

Saint Vincent and the Grenadines 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Saint Vincent and the Grenadines during the year.

Significant human rights issues included significant presence of any of the worst forms of child labor.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers to form and join independent unions, bargain collectively, and conduct legal strikes. A local civil society organization reported the government used the Public Order Act to undermine workers' ability to strike. The law did not require employers to recognize a particular union as an exclusive bargaining agent. The law prohibited antiunion discrimination and dismissal for engaging in union activities. Although the law did not require reinstatement of workers fired for union activity, a court could order reinstatement.

The government recognized the right to freedom of association, with restrictions. The International Labor Organization noted with concern the

discretionary authority of the government regarding trade union registration and the government's unfettered authority to investigate the financial accounts of trade unions.

The government generally respected the right to collective bargaining in the private sector. Authorities formed arbitration panels, which included tripartite representation from government, businesses, and unions, on an ad hoc basis when labor disputes occurred.

The government did not always enforce labor laws effectively. Penalties were undefined and thus were not consistently commensurate with penalties for analogous violations such as civil rights violations (e.g., discrimination). No information was available on whether penalties were applied against violators.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a minimum wage for all sectors. Minimum wages varied by sector and type of work and were below the poverty income level.

The law prescribed hours of work for specific categories, such as industrial

employees (40 hours per week), professionals (44 hours per week), and agricultural workers (30 to 40 hours per week). The law provided that workers received time-and-a-half pay for hours worked in excess of the standard workweek. There was a prohibition against excessive or compulsory overtime.

Occupational Safety and Health

Occupational safety and health (OSH) standards were generally appropriate for the main industries, agriculture, fisheries, and tourism. OSH experts did not proactively identify instances of unsafe conditions, but the government responded to workers' OSH complaints. Government representatives reported that while workers could remove themselves from unsafe work environments, some employers refused to pay these workers or fired them and refused to reinstate them. When this occurred, the Labour Department mediated between employers and workers to resolve the matter. If mediation was unsuccessful, workers could seek redress in the magistrate's court.

Wage, Hour, and OSH Enforcement

The government effectively enforced minimum wage and overtime laws; it did not effectively enforce OSH laws. The Labour Department was responsible for the administration and enforcement of the law. Penalties for violations were not commensurate with those for similar crimes such as

fraud or negligence. No information was available on whether penalties were applied against violators.

Major OSH concerns included industrial safety, specifically exposure to harmful substances and compliance with safety protocols. Government representatives reported unsafe work conditions were common in the industrial and agriculture sectors. In August, media outlets reported a lawyer complained police officers worked in stations that had mold, broken windows, bats, and nonfunctioning toilets.

Labor inspectors conducted unannounced inspections but were not authorized to levy sanctions. It was unclear if the number of inspectors was sufficient to enforce compliance. The Department of Labour did not have the legal authority to impose fines for violations, but it conducted follow-up inspections to assess if the shortfalls had been addressed; no employers were fined or cited for violations during the year. Judicial officials had the authority to prosecute violations of workplace law and impose fines.

Workers who received less than the minimum wage could file a claim with labor inspectors, who investigated and, if warranted, referred the matter to arbitration. The Department of Labour reported it conducted weekly public education campaigns to educate workers of their rights.

In May, the Eastern Caribbean Court of Appeal heard the government's appeal of a 2023 High Court ruling that the government's requirement that public employees receive the COVID-19 vaccine to keep their jobs was

unconstitutional. Hundreds of public employees were dismissed for refusing to take the vaccine. The High Court had also ruled the claimants were entitled to full back pay and benefits due from the respective dates on which they were deemed to have “resigned.” The government did not pay back pay or benefits as of year’s end, and a civil society organization reported many of the workers remained unemployed. The Eastern Caribbean Court of Appeal did not issue a ruling by year’s end.

There was no information regarding the size of the informal sector. The government enforced labor laws in this sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

The oldest case on remand was from 2015, involving an accused individual deemed not mentally fit to stand trial but too dangerous to be released.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18. Parental consent was required for underage marriage. The government enforced the law effectively.

c. Protection to Refugees

There was not a significant number of refugees in the country.

d. Acts of Antisemitism and Antisemitic Incitement

There was no organized Jewish community, and there were no reports of antisemitic incidents.